

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: July 1, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

SCHEDULING ORDER

On June 26, 2025, Samsung Electronics America, Inc. (“SEA”), and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL”) filed a joint status report (“JSR1”) and proposed discovery schedule.

Discovery Schedule. In general, discovery is to be completed within 150 days of the service of the respondent’s answer to the complaint. (46 C.F.R. § 502.141(g)). SEA filed its operative Verified Amended Complaint on December 12, 2024, and OOCL filed a Verified Answer on December 12, 2024. In JSR1, the parties proposed a discovery schedule that contemplates completion of fact discovery on February 13, 2026, and expert discovery on May 8, 2026. The proposed discovery schedule exceeds the discovery deadline of 150 days after the answer.

While Commission Rule 25, 46 C.F.R. § 502.25, generally grants the presiding officer the authority to manage a proceeding, the parties should show a good faith attempt to resolve the proceeding as expeditiously as possible. The requested schedule, which does not complete discovery for almost a year, is excessive. Further, it is unclear why discovery cannot commence upon the service of this Order.

As noted below, the parties are to revise their proposed discovery schedule in light of the discovery period commencing on July 1, 2025, and ending 150 days later. The proposed discovery schedule is to be set forth in the second joint status report (“JSR2”), discussed below.

Further, JSR1 does not contain proposed dates for dispositive briefing. In light of the requirement for joint status reports, the parties are to propose a briefing schedule with JSR2.

Joint Status Report. The parties will be required to file joint status reports on the first business day (*i.e.*, not a weekend or Federal holiday) of every month, beginning August 1, 2025, through the end of discovery, in order to apprise the Presiding Officer of progress made regarding discovery during the intervening month, as well as any disputes, concerns or other issues. Among other things, the joint status reports should describe: the number of custodians searched by each party and any custodians remaining to be searched; the volume of documents/ESI returned from those searches; the volume of documents/ESI reviewed; the volume of documents/ESI produced; any obstacles encountered in reviewing or producing documents/ESI; anticipated number of depositions for each party and any obstacles related to scheduling those depositions; depositions taken; any disputes that have arisen that may require intervention; and, as noted below, a proposed briefing schedule.

As noted above, should a joint status report fail to demonstrate that material progress has been made, or that one or both parties have or has unreasonably impeded the progress of discovery, the Presiding Officer will take that into consideration in the event of a motion to extend discovery deadlines. Further, the parties are to raise discovery disputes promptly by motion.

To make the discovery process more efficient, the parties are encouraged to agree to limitations on discovery and stipulations of facts. The parties are also encouraged to review the Initial Order for instructions related to confidential information. For example, parties may not mark entire depositions as confidential, so they should ask questions that may require confidential responses together, typically at the end of the deposition.

Expert Disclosure. In JSR1, the parties disagree as to when the experts are to be identified.

The Commission Rules contemplate that the disclosure of the expert will be accompanied by the production of an expert report. In particular, the applicable Commission Rule provides that: “A party must disclose to the other parties the identity of any witness it may use in the proceeding to present evidence as an expert.” (46 C.F.R. § 502.141(d)(1)). The applicable Rule also provides that: “. . . the disclosure must be accompanied by a written report, prepared and signed by the witness.” (46 C.F.R. § 502.141(d)(2)). This Commission Rule is similar to the rule in federal courts. (*See* FED. R. CIV. P. 26(a)(2)(B)).

OOCL proposes the schedule here should not follow this default rule. Instead, OOCL proposes that the parties should disclose the identity of their respective expert witnesses before the service of their respective reports. OOCL gives two reasons for its proposal. First, under the default rule, OOCL would only have 30 days to find an appropriate rebuttal expert, which gives SEA, who presumably already knows the identity of its expert, an advantage. Second, the default Commission Rule, which provides for the disclosure of an expert’s identity at the same time as the disclosure of the expert’s report, is often not followed in practice in either federal courts or by the Commission.

SEA proposes that the schedule here should follow the Commission Rule regarding expert disclosure, namely that the identity of expert witnesses should be disclosed at the time that the respective expert reports and rebuttal reports are due. SEA adds that it has not yet identified an expert witness.

I am not persuaded by OOCL's arguments as to why the default rule should be modified. As for OOCL's assertion that the disclosures are often modified, OOCL offers no support. As for its assertion that SEA presumably knows the identity of an expert, SEA denies that assertion. Therefore, I will not modify the default rule.

Briefing

1. **[Party's] Brief [Confidential or Public]**. Each party shall file a brief meeting the requirements of Commission Rule 214, (46 C.F.R. § 502.214), with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact [Confidential or Public]**. This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact [Confidential or Public]**. This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix [Confidential or Public]**. The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix which complies with the next section.

Appendix of Exhibits

5. The cover of the appendix shall identify the party or parties that prepared the appendix and whether the filing is a public or confidential version.

6. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially with a unique prefix, for example CX 1, CX 2 for Complainant's exhibits and RX 1, RX 2, etc. for Respondent's exhibits. If there are multiple Respondents, they must use different prefixes, so that no bates numbers are repeated in the record.
7. Bates numbers should not be repeated, for example, if a first appendix runs from RX 1 to RX 158, a later submitted appendix should be labeled beginning with RX 159, RX 160, etc.
8. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet and bookmark.
9. References to a party's appendix in briefing must match the bates stamp applied to the exhibit page, the one exception being that omitting leading zeroes is preferred. (For example, if an appendix page is stamped RX-00059, it is appropriate to refer to this page in briefing as RX 59 but not as R 59.)
10. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.
11. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7).

The Initial Order has additional requirements, including for submitting confidential material. The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: *judges@fmc.gov*, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

Other Matters. The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” (*Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985))). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” (*Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983)). The authority of courts to control their dockets is well settled. (*Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998)).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All

requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” (46 C.F.R. § 502.2(a)). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Order. In light of the above, the parties are hereby **ORDERED** to propose a revised discovery and briefing schedule that keeps within the following timeframe:

Begin exchange of Requests for Production of Documents, Requests for Admissions, and Interrogatories	July 1, 2025
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Close of Expert Discovery	November 28, ¹ 2025
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Richard C. Ambrow Jr -S	Digitally signed by Richard C. Ambrow Jr -S Date: 2025.07.01 06:17:09 -07'00'
Richard Ambrow Administrative Law Judge	

¹ The 150 day discovery period expires November 27, 2025, which is a holiday. The deadline is thus extended until the following business day. (46 C.F.R. § 502.101).